

		Plaintiffs have not shown that they served the LWDA with their moving papers. Plaintiffs are ordered to give notice of this ruling to the LWDA and Defendant, to serve the LWDA with their original moving papers as well as any new papers filed for future hearings, and to file a proof of service showing such compliance.
7	30-2023-01346806 Herrera vs. 180 Snacks, Inc.	The tentative ruling is to continue Plaintiff's Motion for Preliminary Approval of Class and Representative Action Settlement to December 7, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns below (not fully revised papers that would have to be reread) no later than 16 days before the next hearing date. Counsel must provide red-lined versions of all revised papers and settlement provisions. Counsel also should provide the court with an explanation of how the issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. <u>As to the settlement:</u> 1. The settlement provides it must be determined, prior to preliminary approval, whether the escalator provision has been triggered and, if so, defendants' election of option. ¶ 8. 2. Provide the highest and lowest estimated individual class and PAGA awards. 3. As provided in the settlement (¶¶ 6.1-6.2) the parties (including defendants) should advise, in declarations filed with the court, whether, after making reasonable inquiry, they have become aware since executing the settlement agreement of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action. If any such actions are known to exist, the declarations must also state the name and case number of any such case and the procedural status of that case, and must describe the impact of the settlement on that case. 4. While the court will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of

		30% of the gross settlement amount absent unique circumstances. Plaintiff's counsel should address at final approval whether any such unique circumstances exist here. <u>As to the notice:</u> 5. The notice should be revised consistent with the above. 6. Replace “a good deal for you” with “fair.” § 2 ¶ 2. 7. Remove “up to” with regard to amount of PAGA Penalties. § 3 ¶ 2(D). 8. Add “initially” between “also” and “decide.” § 3 ¶ 8. 9. Inform class members and aggrieved employees that settlement documents will be available on the administrator’s website for at least 180 days following entry of judgment, which occurs after the court grants final approval. § 9. <u>As to the proposed order:</u> 10. The proposed order should be revised consistent with the above. 11. The English and Spanish versions of the notice (including all forms) must be identified and exhibited to the order. ¶ 4. 12. Other than the first two sentences, paragraph 16 should be deleted. Additionally, remove the apostrophe before the second sentence in that paragraph. 13. Remove paragraph 17. Plaintiff is ordered to give notice of this ruling to the LWDA and defendants and to file a proof of service.
8	30-2018-01015248 Springs vs. SBM Site Services, LLC	Defendant SBM Site Services, LLC’s (“Defendant”) Motion for the Court to Reinstate Its Order Compelling Arbitration is GRANTED. The order granting Defendant’s Motion to Compel Arbitration in part on January 27, 2023 (ROA 206), which was vacated on January 26, 2024 (ROA 253), is deemed reinstated.